

OKLAHOMA CHAPTER OF TRIANGLE

LOCAL CONSTITUTION AND BYLAWS

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Constitution

PART I. CHAPTER

ARTICLE 1. NAME AND OBJECT

Section 1: This organization shall be known and designated as "Oklahoma Chapter of Triangle," by virtue of the charter granted to it on November 18, 1979, by TRIANGLE, a Fraternity of Engineers, Architects, and Scientists.

Section 2: The objectives of the Oklahoma Chapter of Triangle shall be the objectives of TRIANGLE, as stated in the National Constitution of Triangle, relevant to those who no longer attend university, including:

- To help develop the highest standards of personal integrity and character,
- To recognize and support the objectives and goals of the alma mater and those of the community through responsible participation and action,
- To help bridge the gap between undergraduate study and the vocation of the individual in industry, the academic world or government,
- To foster and maintain a bond of fraternal brotherhood through a continuing program of activity for the alumni

Section 3: Any section or bylaw of this constitution not in accord with the National Constitution or the Ritual of TRIANGLE shall be void, and shall be amended, as hereinafter provided.

ARTICLE 2. MEMBERSHIP AND ORGANIZATION

Section 1: The members of the Oklahoma Chapter of Triangle shall be all men who have been regularly initiated into the chapter, and all Honorary, Associate, and Affiliated members of the chapter, as defined in Article 3 of the National Constitution and Article 1 of the National Bylaws. It shall also include naturalized members of other chapters as defined in Section 6 of this Article. This Constitution defines a "Brother" to be a person who meets the requirements of membership at any chapter of TRIANGLE.

Section 2: The Chapter shall consist of an Alumni Organization and an Active Organization, as hereinafter described.

Section 3: The government of the Oklahoma Chapter of Triangle shall be vested in a board of directors, as hereinafter provided.

Section 4: The Oklahoma Chapter of Triangle shall be incorporated under the laws of the State of Oklahoma. If the corporate name of the chapter differs from its fraternal name, the corporate name shall be used in legal matters only.

Section 5: The Corporation shall be governed according to this constitution, and according to its legal contracts.

Section 6: Under the authority granted in the National Constitution, Article 1, Section 2, Paragraph 4, the Oklahoma Chapter of Triangle may designate certain brothers of other chapters as naturalized members of Oklahoma Chapter. Such brothers should be brothers who have shown an ongoing desire to be a part of Oklahoma Chapter, its activities and culture. To be recommended as a naturalized member, the brother must have attended at least one Initiation Ceremony with our chapter and be an alumnus of his own chapter.

Section 7: Any current member of Oklahoma Chapter (including already naturalized members) may recommend a brother for this special status by making a motion to the Board of Directors, either in one of its regular meetings or by e-mail to the entire Board. The Board will announce the nomination to all current Oklahoma members prior to the Annual Meeting in whatever communications medium the Board sees as best for the time period. The vote will be taken at the Annual Meeting by secret ballot of those Oklahoma members present. The nominee must receive no more than 3 no votes to be granted naturalized status. A naturalized brother may take part in Oklahoma Chapter affairs to the same extent as any regular alumnus member while retaining membership in his original chapter. The next available page in the Oklahoma Chapter member book shall be used to record the naturalized member, though his place in chapter activities involving bond number shall be by his national bond number.

ARTICLE 3. MEETINGS

Section 1: An annual meeting of the Board of Directors shall be held on the same day as the Local Founders' celebration at a location determined by the Board of Directors. This, and all other meetings, shall be open to all members of the Fraternity.

Section 2: Special meetings of the Board of Directors may be called at any time, when authorized by a majority vote of the Board of Directors, or upon written or email request of ten (10) members of the Chapter to the Board of Directors.

Section 3: At least fourteen (14) days notice, in writing or email, shall be sent to all Members for both annual and special meetings.

Section 4: A quorum at any meeting of the Board of Directors shall consist of

a majority of voting members. Persons designated as proxy voters shall count toward quorum requirements.

Section 5: The Board of Directors will set a uniform policy by which Members of Triangle who are not members or voting proxies of members of the Board of Directors will be afforded the opportunity to raise issues and opinions at meetings of the Board of Directors.

ARTICLE 4. BOARD OF DIRECTORS

Section 1: The Board of Directors shall consist of:

- The Chairman
- The Director of Finance
- The Director of Alumni Correspondence
- The Director of Alumni Programming
- The Director of Membership Development

Section 2: It shall be the duty of the Board to responsibly grow the Alumni and Active Organization, in whole and in part, and execute the business of the fraternity; it shall be ultimately responsible for the health of the organization and brotherhood. It shall make a complete report of the status of the Chapter at each Annual Meeting.

Section 3: The Board of Directors shall administer the funds of the Chapter, and it shall authorize the disbursement of funds for such general purposes as the Chapter may direct. It shall serve as the governing body of the Oklahoma Chapter Corporation.

Section 4: The members of the Board of Directors are chapter-wide offices and shall be elected by popular vote of the Active, Alumni, Associate, and Honorary membership of the Chapter.

Section 5: The members of the Board of Directors must be elected by secret ballot.

Section 6: The members of the Board of Directors shall be installed at the Annual Meeting of the Board of Directors during even-numbered years. They shall serve 2 year terms. There are no term limits on the positions for the Board of Directors.

Section 7: One person may not be elected to more than one office on the Board of Directors at a time. At no time shall any member of the Board of Directors cast more than one vote on any matter

Section 8: The Chairman and Directors of Finance, Alumni Correspondence, Alumni Programming, and Membership Development must all be members of Triangle Fraternity, though they need not be initiated into the Oklahoma Chapter. All other positions may be held by non-Triangle members.

Section 9: A new board position can be added at the unanimous consent of the Board of Directors. These members are considered full voting members of the Board of Directors and serve in the designated capacity and defined title. These ad-hoc positions may be removed by unanimous consent of the core officer listed in Section 1.

Section 10: Members can be removed by 3/4 vote of no-confidence. Vacancies are appointed by the Chair to serve the remaining term. If the Chair is removed, a new chair is elected by the remaining board members.

ARTICLE 5. DUTIES

Section 1: The Board of Directors shall elect and send an alumnus delegate to each National Convention of TRIANGLE.

Section 2: The Board of Directors shall finance the preparation and mailing of all chapter newsletters.

Section 3: Amendments shall be sent to the National Headquarters for the purpose of keeping the copy of the chapter constitution there up to date.

ARTICLE 6. AMENDMENTS AND BYLAWS

Section 1: The Annual Meeting of the Board of Directors shall consider any amendment to this constitution which is submitted to it in writing with recommendation for approval by either by the Active Organization or by the Board of Directors.

Section 2: Any amendment so submitted shall be adopted if it receives the favorable vote of three-fourths (3/4) of the members at the Annual Meeting of the Board of Directors.

Section 3: The Bylaws to this constitution may be amended by a two-thirds (2/3) favorable vote of the members present at the Annual Meeting of the Board of Directors, or by the unanimous vote of the Board of Directors.

ARTICLE 7. LIMITATIONS AND OBLIGATIONS OF OFFICERS

Section 1: The officers of this organization serve at the request of, and as a result of election by, the membership of the organization, and assume no personal responsibility for the debts and obligations of the Oklahoma Chapter of Triangle as a result of their service or the execution by them of documents on behalf of the Oklahoma Chapter of Triangle. The Oklahoma Chapter, its creditors, and its assignees shall have no claim against the personal assets of the officers, individually or severally, except to the extent that a court of competent jurisdiction shall determine that such officers have incurred a liability by reason of fraud, deliberate and willful misconduct, or mismanagement so gross as to constitute fraud.

ARTICLE 8. TRANSFER OF ASSETS/LIABILITIES ON DISSOLUTION

Section 1: In the event that the Active/Student organization of the Oklahoma Chapter of Triangle Fraternity shall cease activities, dissolve, or disband, whether voluntarily or involuntarily, all assets of the Oklahoma Chapter of Triangle shall remain in the possession of the University of Oklahoma Chapter of Triangle Fraternity, Inc.

Section 2: In the event that this Chapter along with its Corporation entity shall cease activities, dissolve, or disband, whether voluntarily or involuntarily, the assets of the Oklahoma Chapter of Triangle shall be transferred to the National Council of Triangle which shall apply such assets to the satisfaction of outstanding liabilities and thereafter shall hold or dispose of the unexpended balance of assets, if any, in a manner satisfactory to the National Council of Triangle.

ARTICLE 9. OKLAHOMA TRIANGLE PERMANENT FUND

Section 1: Through hard work and generous donations by our local alumni, The Oklahoma Chapter of Triangle has established the Triangle Permanent Fund in order to secure the long term financial health of the chapter. The purpose of this fund is aid in our mission to provide a quality environment in which enduring friendships may be formed, and to a create an atmosphere where Triangles of all ages may engage in fraternal comradery.

Section 2: The Triangle Permanent Fund is to be kept on deposit with Triangle Building and Housing Corporation, and kept in the form of a long-term debenture.

Section 3: Provided the Triangle Building and Housing Corporation is unable

or unwilling to accept or maintain such an account, and only provided such is the case, the Triangle Permanent Fund is to be kept on deposit in a licensed and SIPC insured brokerage firm. No less than forty-five percent of the fund shall be kept US government bonds (symbol: GOVT), and no less than another forty-five percent in a broad based (Russell 2000) ETF. Any remaining amount shall be kept on reserve in a cash balance with said broker. Responsibility for rebalancing the account at regular intervals, along with other stewardship activities, will rest with the Alumni Director of Finance, or his designee(s).

Section 4: Without exception, the principle amount of this debenture may not be withdrawn at any time, excepting that said funds are applied toward the purchase of a fraternal home or lodge benefiting the fraternity as a whole, in accordance with collegiate fraternity traditions and values. Funds may be used for associated legal, construction, title, appraisal, or similar closing and mortgage costs. The decision to withdraw the principle of the fund shall require a unanimous vote of the Board of Directors.

Section 5: Interest or dividends paid on this fund, if any, may be allocated for reasonable expenses related to the upkeep, maintenance, legal, or accounting fees with either a permanent home, or a leased property which is in accordance with collegiate fraternity traditions and values. Interest or dividends paid on this fund may also be used for associated accounting, legal, or tax fees associated with the fund's own upkeep. Any other use of interest or dividend income shall be considered wholly inappropriate. The decision to withdraw interest or dividends of the fund shall be at the discretion of the Director of Finance.

Section 6: At each year's regular annual meeting, the Alumni Director of Finance will make an accurate and exact accounting of the balance of this fund, describe any withdrawals or use of its funds since the last report, and any anticipated expenses arising from its upkeep.

ARTICLE 10. OKLAHOMA CHAPTER ENDOWMENT FUND

Section 1: Through hard work and generous donations by our alumni, the Oklahoma Chapter of Triangle is able to participate in the Chapter Endowment Program offered by Triangle Educational Foundation (TEF). The Chapter Endowment Fund is restricted by law under section 501c3 of the Internal Revenue Code. Funds for the Oklahoma Chapter Endowment Fund are maintained by TEF, and the chapter receives a 'draw' on balance, after coordination with TEF.

Section 2: Without exception, the Chapter Endowment Fund may be used for any allowable expense authorized by IRS law and approved by the Triangle Education Foundation, excepting for housing related expenses.

Section 3: At each year's regular annual meeting, the Alumni Director of

Finance will make an accurate and exact accounting of the balance of this fund, describe any use of its proceeds since the last report, and any anticipated expenses arising from its upkeep.

Bylaws

PART I. CHAPTER

ARTICLE 1. DUTIES OF OFFICERS

Section 1: The Chairman of the Board of Directors of the Oklahoma Chapter of Triangle shall preside at all meetings of the Chapter, and at all meetings of the Board; he may sign legal documents on behalf of the Corporation; he shall perform such other duties as his office or the Board of Directors may require. In the absence of the Chairman, the Director of Finance shall assume his duties.

Section 2: The Director of Finance shall have custody of all funds and securities of the Chapter; he shall keep regular books of account; he shall sign instruments requiring his signature; he shall make a complete financial report to the Chapter at the Annual Meeting; he shall be tasked with creation of the budget, and monitoring of its accounting; he shall ensure all steps are required to maintain tax status per the National Organization guidelines; he shall perform all other duties incident to his office, or required by the Board of Directors. The Treasurer shall be bonded.

Section 3: The Director of Alumni Correspondence shall issue notice of all meetings and keep minutes of the same; he shall keep all Chapter records; he shall maintain a roll of addresses of Chapter alumni; he shall be responsible for the Chapter newsletter and regular announcements to members; he shall sign such legal documents as require his signature; he shall perform other duties incident to his office.

Section 4: The Director of Alumni Programming shall be responsible for maintaining an events calendar for alumni within and outside the Norman area; he shall promote an environment in which enduring friendships can be maintained for alumni.

Section 5: The Director of Membership Development shall be responsible for ensuring undergraduate members of the fraternity are on a track for professional success; he shall provide scholastic, resume, professional, or personal help as needed for members; he shall be proactive in his approach in insuring the pipeline of talent is maintained within the chapter.

ARTICLE 2. ANNUAL MEETING

Section 1: The order of business at the Annual Meeting of the Board of Directors shall be prepared by the Chairman, making due allowance for presentation

of reports, old and new business, submission of amendments to the constitution, and Installation of the officers of the Chapter.

ARTICLE 3. STANDING COMMITTEES

Section 1: The Director of Finance will chair the Finance committee. The committee will be responsible for ensuring the strategic financial planning of the chapter.

Section 2: The Director of Alumni Correspondence will chair the Publicity committee, which will be responsible for ensuring the Alumni are informed on activities pertaining to the actives and alumni of Triangle.

Section 3: The Director of Alumni Programming will chair the Programming Committee, which is charged with tasks pursuant to programs relevant to Alumni of the fraternity.

ARTICLE 4. MEETINGS

Section 1: The minutes of a meeting of the Board of Directors will be considered to have been read if they are submitted, in writing or electronically, to all Members at least ten (10) days prior to the next meeting of the Board of Directors. This section should not be considered to constitute approval of the minutes.

Section 2: Minutes will be considered to have been sent to all Members, if they are sent via e-mail to the alumni mailing list maintained by the Chapter and appear in the list archives within the time-frame given in Section 1.